

2.15 VISUAL PRIVACY AND SECURITY

Privacy is important for residential amenity. The enjoyment of a residential property by its occupants relies on achieving a reasonable level of acoustic and visual privacy.

Roof-top terraces are discouraged in areas outside Dover Heights.

Objectives

- (a) To ensure residential amenity is provided within and between developments.
- (b) To maximise outlook and views from principal rooms and private open space without compromising visual privacy.
- (c) To ensure buildings are safe and secure for residents and visitors.
- (d) To minimise adverse impacts of roof-top terraces.

Controls

- (a) Dwellings should be oriented towards the street with entrances and street numbering clearly visible.
- (b) Development should be designed to provide clear sightlines and lighting between public and private places.
- (c) Development comprising 50 or more dwellings must be designed having regard to Crime Prevention through Environmental Design (CPTED) principles (refer to *B10 Safety*). Council may also require consideration of these principles for other large scale development (refer to the NSW Governments *Crime Prevention and the Assessment of development Applications – Guidelines* under section 4.15 of the *EP&AA 1979* for details).
- (d) Above ground open spaces must not directly overlook rooms and private landscaped areas of adjoining properties unless screening can mitigate overlooking. This includes:
 - (i) offset windows of dwellings in new development and adjacent development,
 - (ii) recess balconies and/or provide vertical fins between adjacent balconies; provide solid or semi-solid balustrades to balconies where necessary;
 - (iii) provide louvres or screens to windows/balconies where necessary;
 - (iv) use vegetation as a privacy screen between buildings;
 - (v) incorporate planter boxes into walls or balustrades to increase the visual separation between areas, and
 - (vi) utilise pergolas or shading devices to limit overlooking of lower dwellings or private open space.
- (e) Privacy needs to be considered in the context of density, separation, use and design and should consider the following principles from LEC decision *Meriton vs. City of Sydney Council (2004) NSWLEC 314*.
- (f) Windows and balconies of an upper level dwelling should be designed to prevent overlooking of more than 50% of the private open space of a lower level dwelling directly below and within the same development. Development may :
 - (i) screen balconies from other balconies and ground level private open space, separate communal open space;
 - (ii) common areas and access routes through the site from the windows of habitable rooms; and